PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:

CHILD CUSTODY AND VISITATION (PARENTING TIME) APPLICATION ATTACHMENT

—This is not a court order—

TO ☐ **Petition** ☐ **Response** ☐ **Request for Order** ☐ **Responsive Declaration to Request for Order**
☐ **Other** (specify):

This section is for information only and is not a part of your request for orders:

California's public policies and law on child custody and visitation include that:

- In general, children should have frequent and continuing contact with their parents, and parents should be encouraged to share the responsibility of raising their children, except when domestic abuse has happened or contact with a parent is not in the best interests of the children.
- When making any orders about physical and legal custody and visitation (parenting time), the court must consider the best interests of the child, which primarily include the health, safety, and welfare of the child.
- If a parent has been abusive, judges use laws to help protect children when deciding to make orders about child custody and visitation (parenting time). A judge may deny an abusive parent custody or unsupervised visitation with a child.
- Children have the right to be safe and free from abuse.
- A child's exposure to domestic violence and domestic violence committed where a child lives are detrimental to the health, safety, and welfare of the child.
- For more information, read selfhelp.courts.ca.gov/child-custody#best-interest and selfhelp.courts.ca.gov/domestic-violence-child-custody

Complete items 1 through 13 that apply to your request for orders.

1. **Minor Children** ☐ Attachment 1.

Child's name	Birthdate	Age

2. ☐ **Custody** of the minor children is requested as follows:

	Petitioner	Respondent	Joint	Other Parent/Party
a. Physical custody of children to..... (The person with whom the child will regularly live)	☐	☐	☐	☐
b. Legal custody of children to ..... (The person who decides about the child's health, education, and welfare)	☐	☐	☐	☐

Note: To ask the court for joint legal custody orders that specify when the parents must agree before making decisions (for example, before choosing or changing the children's school, doctor, or religious or school activities), use Joint Legal Custody Attachment (form FL-341(E)) or a document that includes the same content as form FL-341(E).

To learn about physical and legal custody, go to selfhelp.courts.ca.gov/child-custody.

c. ☐ There are allegations of a history of abuse or substance abuse in this case. (You must complete item 5.)

d. ☐ Other (specify):

3. ☐ **Visitation (Parenting Time)** I request that the court order (check one):

a. ☐ Reasonable right of visitation (parenting time) to the party in item 2a without physical custody, including but not limited to, virtual visitation. **(Not appropriate in cases involving domestic violence and substance abuse).**

b. ☐ Visitation (parenting time) as described in the attached -page document dated (specify date):

c. ☐ The visitation schedule in item 4 that includes in-person, virtual, other visitation.

d. ☐ Supervised visitation. (You must complete item 6.)

e. ☐ No visitation (parenting time) to the person without physical custody for the reasons described in item 13.

Note: Unless specifically ordered, a child's holiday schedule order has priority over the regular parenting time.

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4. ☐ **Petitioner's** ☐ **Respondent's** ☐ **Other Parent's/Party's** visitation (parenting time) will be (check all that apply):

a. ☐ **In person,** as follows (Specify start and ending date and time. If applicable, check "start of" OR "after school"):

(1) ☐ **Weekends starting** (date):
(Note: The first weekend of the month is the first weekend with a Saturday.)

Weekend	Day(s)	Times			Start of (or After) School *(if applicable)*	
☐ 1st	from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
	to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
☐ 2nd	from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
	to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
☐ 3rd	from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
	to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
☐ 4th	from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
	to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
☐ 5th	from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
	to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after

(a) ☐ The parties will alternate the fifth weekends, with the ☐ petitioner ☐ respondent ☐ other parent/party having the initial fifth weekend, starting (date):

(b) ☐ The ☐ petitioner ☐ respondent ☐ other parent/party will have the fifth weekend in ☐ odd ☐ even numbered months.

(2) ☐ **Alternate weekends starting** (date):

(Specify day(s) and times):						
from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after

(3) ☐ **Weekdays starting** (date):

(Specify day(s) and times):					
from _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after
to _____	at _____	☐ a.m.	☐ p.m.	☐ start of	☐ after

(4) ☐ Other visitation (parenting time) days and restrictions are ☐ listed in Attachment 4a(4) ☐ as follows:

b. ☐ **Virtual visitation**
I ask that the court order virtual visitation as described ☐ in Attachment 4b. ☐ below:
Virtual visitation means using audiovisual electronic technology (like a smartphone, tablet, smart watch, or computer) for a parent and a child to see and hear each other. Learn more about how to have safe virtual visits at selfhelp.courts.ca.gov/child-custody/virtual-visitation.

c. ☐ **Other ways that visitation (parenting time) can happen** that are in the best interests of the child (specify):

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5. ☐ **Child custody and visitation when there are allegations of a history of abuse or substance abuse**

a. **Allegations**

(1) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have a history of abuse against any of the following persons: a child, the other parent, their current spouse, or the person they live with or are dating or engaged to.

(2) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have the habitual or continual illegal use of controlled substances, or the habitual or continual abuse of alcohol, or the habitual or continual abuse of prescribed controlled substances.

b. **Child custody**

(1) ☐ I ask that the court NOT order sole or joint custody of the minor child to the party or parties in 5a.

(2) ☐ Even though there are allegations, I ask that the court make the child custody orders in item 4.
(Write the reasons why you think it would be in the best interests of the child that the party or parties be granted child custody, even though there are allegations against them of a history of abuse or substance abuse. The orders that you request about child custody or visitation must also be specific as to time, day, place, and manner of transfer (exchange) of the child, as Family Code sections 3011(a)(5)(A) and 6323(c) require.)
☐ Below: ☐ Attachment 5b(2) ☐ Other (specify):

c. **Visitation (Parenting Time)**

(1) ☐ I ask that the court order supervised visitation as specified in item 6.

(2) ☐ I ask that the court order unsupervised visitation to the party or parties as specified in item 4.

(A) Even though there are allegations of a history of abuse or substance abuse, I request that the court order unsupervised visitation to (specify): ☐ petitioner ☐ respondent ☐ other parent/party.

(B) The reasons why the court should make the orders are
(Write the reasons why you think it would be in the best interests of the child that the party or parties be granted unsupervised visitation (parenting time) even though there are allegations against them of a history of abuse or substance abuse. The orders that you request about child custody or visitation must also be specific as to time, day, place, and manner of transfer (exchange) of the child, as Family Code sections 3011(a)(5)(A) and 6323(c) require.)
☐ Below: ☐ In Attachment 5c(2)(B) ☐ Other (specify):

(3) ☐ Other (specify):

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6. ☐ **Supervised visitation (parenting time)**

(To learn about supervised visitation, go to: selfhelp.courts.ca.gov/guide-supervised-visitation.)

a. I ask that ☐ petitioner ☐ respondent ☐ other parent/party have supervised visitation with the minor children.

b. The reasons why the court should make the orders are (specify):
(Write the reasons why you think unsupervised visitation (parenting time) would NOT be in the best interest of the child.)
☐ Below ☐ In Attachment 6b ☐ Other (specify):

c. I ask that the visitations be monitored by (name, if known):
The provider's phone number is (specify):

(1) ☐ The person or agency is a professional provider.

(A) A professional provider must meet the requirements listed in Declaration of Supervised Visitation and Exchange Services Provider (Professional) (form FL-324(P)) and sign the declaration.

(B) Professional provider fees to be paid by: petitioner: percent. respondent: percent. other parent/party: percent.

(2) ☐ The person is a nonprofessional provider. The person must meet the requirements listed in Declaration of Supervised Visitation and Exchange Services Provider (Nonprofessional) (form FL-324(NP).

d. Location of supervised visitation. I request that supervised visitation be (check one):

(1) ☐ In person at a safe location.
(2) ☐ Virtual visitation (not in person).
(3) ☐ Other (describe):

e. Schedule for supervised visitation (specify):

(1) ☐ Once a week, for (number of hours for each visit):
(2) ☐ Two times each week, for (number of hours for each visit):
(3) ☐ As specified in item 4.
(4) ☐ Other (describe):

7. ☐ **Transportation for visitation (parenting time) and place of exchange**

Note: In cases of domestic violence, the court must have enough information to make orders that are specific as to the time, day, place, and manner of transfer (exchange) of the child for custody and visitation under Family Code section 6323(c).

a. The children must be driven only by a licensed and insured driver. The vehicle must be legally registered with the Department of Motor Vehicles and must have child restraint devices properly installed, as required by law.

b. ☐ Transportation **to** begin the visits will be provided by (name):

c. ☐ Transportation **from** the visits will be provided by (name):

d. ☐ The exchange point at the beginning of the visit will be (address):

e. ☐ The exchange point at the end of the visit will be (address):

f. ☐ During the exchanges, the party driving the children will wait in the car and the other party will wait in the home (or exchange location) while the children go between the car and the home (or exchange location).

g. ☐ Other (specify):

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8. ☐ **Travel with children** The ☐ petitioner ☐ respondent ☐ other parent/party **must** have written permission from the other parent or party, or a court order, to take the children out of

   a. ☐ the state of California.

   b. ☐ the following counties (specify):

   c. ☐ other places (specify):

9. ☐ **Child abduction prevention.** There is a risk that one of the parties will take the children out of California without the other party's permission. I request the orders set out on attached form FL-312.

10. ☐ **Child custody mediation**

    I request an order for the parties to go to child custody mediation or child custody recommending counseling (specify date, time, and location, if applicable):

    Note: Parents with a family court case who do not agree about child custody or visitation are required to attend mediation to try to develop a parenting plan that is in the best interest of their child. A party who alleges domestic violence in a written declaration under penalty of perjury or who is protected by a protective order may ask the mediator or child custody recommending counselor to meet with the parties separately and at separate times. A court order for separate sessions is not required.

11. ☐ **Children's holiday schedule.** I request the holiday and vacation schedule set out ☐ below ☐ on form FL-341(C)

12. ☐ **Additional custody provisions.** I request the additional orders for custody set out ☐ below ☐ on form FL-341(D)

13. ☐ **Other** (specify):

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